

HOUSE BILL 2140

By Zachary

AN ACT to amend Tennessee Code Annotated, Title 18;
Title 38, Chapter 6, Part 1 and Title 39, relative to
criminal offenses involving theft.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-14-113(d), is amended by adding the following as a new subdivision:

(4)

(A) Any sentence imposed for a violation of subsection (c) shall include a mandatory minimum sentence of thirty (30) days incarceration if the defendant used or possessed a firearm, firearm ammunition, a firearm-related device, or an anti-theft device during the commission of the offense.

(B) As used in this subdivision (d)(4):

(i) "Anti-theft device" means any device, tool, machine, implement, or other item used to unlawfully deactivate, circumvent, interfere with, remove, or otherwise render inoperative a monitor, sensor, camera, or other security device used or designed to prevent or deter the theft of retail merchandise; and

(ii) "Firearm-related device" includes, but is not limited to, a firearm scope, a firearm silencer, and any part or combination of parts designed or intended solely for use in converting a firearm into a machine gun.

SECTION 2. Tennessee Code Annotated, Section 39-14-113(c)(1), is amended by deleting "ninety-day" and substituting "one-hundred-eighty-day".

SECTION 3. Tennessee Code Annotated, Section 39-14-113(c), is amended by adding the following as new subdivisions:

(11) Knowingly uses a mask, facial covering, or other concealment of the person's identity to facilitate the commission of an offense under this subsection (c); or

(12) Knowingly uses a motor vehicle with no license plate; an altered, fake, or concealed license plate; or a temporary license plate to facilitate the commission of an offense under this subsection (c).

SECTION 4. Tennessee Code Annotated, Title 39, Chapter 14, Part 1, is amended by adding the following as a new section:

(a) There is created within the Tennessee bureau of investigation a registry of persons convicted of a violation of any of the following offenses:

(1) Section 39-14-113;

(2) Section 39-14-146;

(3) Any offense originally charged as a violation of an offense listed in subdivision (a)(1) or (a)(2); or

(4) Conspiracy to commit, attempt to commit, or solicitation to commit an offense listed in subdivision (a)(1) or (a)(2).

(b) This registry must be maintained by the Tennessee bureau of investigation based upon information supplied to the bureau by the clerks pursuant to subsection (c). The registry must be made available for inquiry by law enforcement agencies only.

(c) The registry shall consist of the person's name, date of birth, offense or offenses requiring the person's inclusion on the registry, conviction date, and county in which the offense occurred. If available after reasonable inquiry, the clerk shall provide the bureau of investigation with the person's driver license number and issuing state, or any other state or federal identification number, and such other identifying data as the

bureau determines is necessary to properly identify the convicted person and exclude innocent persons.

(d) The court clerks shall forward a copy of the judgment and date of birth of all persons who are convicted of a violation of the offenses described in subsection (a) to the Tennessee bureau of investigation. The information must be forwarded to the bureau within forty-five (45) days of the date of judgment.

(e) The Tennessee bureau of investigation shall remove from the registry the name and other identifying information of persons who are convicted of a violation of the offenses described in subsection (a) ten (10) years after the date of the most recent conviction.

(f) The Tennessee bureau of investigation shall remove from the registry the name and other identifying information of persons who are convicted of a violation of the offenses described in subsection (a) upon receipt of a court order of expunction of the offense or notice of the death of such person. Bureau officials shall verify the person's death by checking the social security death index, obtaining a copy of the offender's certificate of death, or obtaining court documentation, a law enforcement report, or any other credible documentation as determined by the bureau.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.